

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001759

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: SILVIO SANTOS
VICENTE

and

RESPONDENT: MARIA MAZARIEGOS
CIFUENTES

NATURE OF PROCEEDINGS: REQUEST FOR ORDER - SPOUSAL SUPPORT

RULING

This matter is before the Court on Respondent/Wife's May 28, 2026, Request for Order (RFO) requesting pendente lite spousal support, property control, \$10,000 in attorney fees, and exclusive use of the marital home in Novato, CA. The parties have one child, Damian, (DOB 5/13/22).

Pendente Lite Spousal support

Wife's May 28, 2026, Income and Expense Declaration (IED) reported \$1,932 in income and \$2,024 in expenses.

Husband's June 24, 2026, IED reported \$6,971 in income from wages last month and \$9,784 in expenses, \$1,549 in work-related childcare expenses and \$339 for the child's health care expenses not covered by insurance. Wife alleges that Husband is receiving unreported rental income.

On July 1, 2026, Wife submitted calculations for spousal support. However, Wife's calculations uses income from a job that Husband hasn't worked at since April of 2026. Additionally, neither of the submitted calculations factor in Husband's childcare expenses or uninsured medical expenses for their son. The calculations also account for unreported rental income for Husband. Wife doesn't provide any proof of the rental income either.

The following monthly inputs were used in running an XSpouse calculation.

Wife:

1. \$2,285 average income, including overtime, from her four provided paystubs.

Husband:

1. \$6,131 average income, including overtime, from his four provided paystubs.

Husband has no deductions.

Husband claims \$1,549 in work-related childcare and \$339 health insurance costs (Husband claims this is his uninsured health care cost in one place, and claims it is cost of health insurance for the child in another place). This is subject to Husband providing supporting documentation.

Based on the above inputs, effective May 28, 2026, Husband must pay to Wife *pendente lite* spousal support in the amount of \$687 per month, payable one-half on the 1st and one-half on the 15th of each month. Spousal support shall continue until Wife remarries, either party dies, or further Court order. Spousal support is neither taxable to the recipient nor deductible by the payor.

Attorney fees

Wife submitted a declaration stating that her attorney charges \$500 an hour, that she has incurred \$7,327 in fees and costs related solely to the dissolution proceedings. Her IED also reports \$2,775 in outstanding balance of attorney fees. Wife states that Husband has the ability to pay for her attorney fees because he is living in the family home and renting out 2 bedrooms in the house.

On June 10, 2026, Husband's attorney substituted out and Husband is now self-represented. Husband states that he has outstanding balance of \$5,000 in attorney fees from his former attorney. (Father also shows in his IED a total of \$10,400 in outstanding legal fees.)

Based on the record before this Court, the Court does not find that Father has the ability to pay Mother's attorney's fees at this time. Accordingly, Mother's request for a contribution of attorney's fees in the amount of \$10,000 is denied.

Property Control- Exclusive use of Marital Home

On January 26, 2026, the court granted each party's request for Domestic Violence Restraining Orders. Husband's December 17, 2025, Temporary DVRO required Wife to move out of the Novato property; both parties acknowledge that Husband has continued to live in the marital home.

Per Fam. Code §6340, "(c) The court may issue an order...excluding a person from a dwelling if the court finds that physical or emotional harm would otherwise result... a minor child of the parties..."

Wife has not presented any evidence to support a Court order that Husband move out of the marital home. In fact, the basis for Wife's request is that Husband is a higher earner and thus has the ability to rent an apartment. However, Wife, per her IED, states that she pays rent in the amount of \$800. Husband's IED states that he pays the mortgage of the marital home in the amount of \$3,011.17. It would not be a financial benefit to Wife who is asking for spousal support to meet her needs.

Accordingly, Wife's request for exclusive use of the marital home is denied.

Counsel for Mother to prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	40.00 %	GUIDELINE		Comb. net spendable	6904	6904
Filing status	MFS->	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	2 *	1 *	Support		Father		
Wages+salary	6971	1932	Father	5204	Payment cost/benefit	-687	-687
Self-employed income	0	0	Mother	1700	Net spendable income	4517	4517
Other taxable income	0	0	Total	6904	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	65%	65%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	1428	1428
401(k) employee contrib	0	0	Marin SS	687	Dep. exemption value	0	0
Adjustments to income	0	0	Total	687	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	5054	5054
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	339	0	Proposed		Payment cost/benefit	687	687
Other medical expense	0	0	Tactic 9		Net spendable income	2387	2387
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0			% of combined spendable	35%	35%
Charitable contributions	0	0			% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	232	232
Qual bus income ded	0	0	SS	687	Dep. exemption value	0	0
Required union dues	0	0	Total	687	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	1601	1601
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Father pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	60 - 40	0	0	0	Father	0	Father	0	Father
Damian	60 - 40	0	0	0	Father	0	Father	0	Father

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001943

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: DAVE FEIFERIS

and

RESPONDENT: ADRIANA FEIFERIS

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – ENFORCEMENT OF
SETTLEMENT AGREEMENT

RULING

This matter is before the Court following Petitioner/Husband's May 18, 2026 Request for Order (RFO) for compliance with the settlement agreement that was attached to the Judgment that was filed December 16, 2026.

On June 30, 2026, Respondent/Wife submitted a responsive declaration. Wife states she is committed to complying with the agreement and requests an additional 30 days to do so.

The Court continues the matter to September 3, 2026.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

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